

Chief Justice's Court

Case :- WRIT - C No. - 26778 of 2023

Petitioner :- Aaysha Begum

Respondent :- Purvanchal Vidhut Vitrana Nigam Ltd And Another

Counsel for Petitioner :- Arun Mishra

Counsel for Respondent :- Narendra Kumar Tiwari

Hon'ble Pritinker Diwaker,Chief Justice

Hon'ble Ashutosh Srivastava,J.

1. Heard Shri Arun Mishra, learned counsel for the petitioner and Shri Narendra Kumar Tiwari, learned counsel for the respondents.
2. The challenge in this writ petition is to the provisional assessment order dated 12.5.2023 and notice under Section 3 of the U.P. Government Electrical Undertaking (Dues Recovery) Act, 1958 issued on 3.6.2023 by the respondent No. 2, Executive Engineer, PUVVNL, Electricity Urban Distribution, Division Karelabagh, Allahabad.
3. The challenge to the assessment proceedings and to the impugned notice has been laid on the ground that the same is without any authority of law, unwarranted and against the aim and intent of the legislative scheme.
4. Learned counsel for the petitioner contends that premises of the petitioner was searched by the respondent No. 2 on 12.4.2023 and provisional assessment notice was issued on 24.4.2023 calling upon the petitioner to file reply within 15 days, but the same was finalized on 12.5.2023 and Notice under Section 3 of U.P. Government Electrical Undertaking (Dues Recovery) Act, 1958 was issued against the petitioner on 3.6.2023. It is contended that the assessment order records the factum that the petitioner had been using electricity by tapping the main line and bypassing the electricity meter installed in the premises. Learned counsel for the petitioner further contends that there is no provision either in Electricity Act, 2003 or in U.P. Electricity Supply Code, 2005 for authorizing the Executive Engineer for issuing such sort of recovery notice.
5. It is contended that since the offence alleged is theft of electricity as defined under Section 135 of the Electricity Act, 2003, the matter can be looked into only by the Special Court constituted under Section 153 of the Electricity Act, 2003 wherein the Special Court has been granted powers to determine the civil liability against a consumer or person and in such view of the matter, the provisional assessment issued by the Executive Engineer of the respondent-corporation is without jurisdiction and is liable to be quashed.

6. In the opinion of the Court, though under the provisions of Electricity Act, Section 153 thereof provides for constitution of Special Court, but elaborate procedure to deal with cases of theft have been provided under Clause 8.1 of the U.P. Electricity Supply Code, 2005 wherein under Clause 8.1 (b) (iii) power conferred upon the Assessing Officer of the licensee who suspects that theft of electricity has taken place (as defined under Section 135 of the Act), he will serve the provisional assessment bill along with show cause notice to the consumer for hearing, giving 15 working days, under proper receipt. The notice shall invite objections in writing from the consumer, if any, against the charges and provisional assessment and require the presence of the consumer to answer to all the charges imposed by the licensee. Clause (iv) of the said provision provides that if, after hearing, the authorized officer finds that a case of theft has been established, the assessment shall be done for the energy consumption for past period as per the assessment formula given in Annexure 6.3 on [2 (two)] times rates as per applicable normal tariff to the purpose for which the energy is abstracted, used or consumed or wasted or diverted, whichever is higher and demand and collect the same by including the same in a separate bill. This is in addition to any civil/criminal proceedings that may be instituted as provided by the Act and described in Clause 8.2(vii).

7. From the perusal of the said provision, it is apparently clear that the challenge to the provisional assessment bill and demand notice made by the petitioner and the arguments advanced in respect of the challenge do not merit consideration.

8. The writ petition, is devoid of merits and is accordingly ***dismissed***, leaving it open for the petitioner to file objections before the respondent No. 2, who in turn, shall decide the same expeditiously.

Order Date :- 10.8.2023

Ravi Prakash

(Ashutosh Srivastava, J.) (Pritinker Diwaker, CJ)